QCX LLC d/b/a Polymarket US

VIA CFTC PORTAL

May 8, 2026

Mr. Christopher J. Kirkpatrick
Office of the Secretariat
Commodity Futures Trading Commission
Three Lafayette Centre
1155 21st Street NW
Washington, DC 20581

Re: QCX LLC – Certification Pursuant to CFTC Regulation 40.6(a): Amended Market Maker Program

Dear Mr. Kirkpatrick:

QCX LLC d/b/a Polymarket US ("Polymarket US" or the "Exchange"), a designated contract market ("DCM") registered with the Commodity Futures Trading Commission (the "Commission" or "CFTC"), hereby files this notice pursuant to CFTC Regulation 40.6(a). This filing notifies the Commission of the amendment of a Market Maker Program (the "Program"). The Terms & Conditions of the Program are set forth in Appendix A. A complete description of the Program is included and segregated as Appendix B, which has not changed since the preceding filing, for which the Exchange seeks confidential treatment. The revisions amend the effective dates of the Program. The Program will expire on May 22, 2026.

The purpose of the Program is to promote consistent liquidity on established Polymarket US markets by incentivizing approved participants to provide continuous, competitive two-sided quotations across a broad base of instruments, which would benefit all market Participants.

This Program is being adopted pursuant to and in accordance with the Exchange's Rulebook 3.15 (Incentive Programs), which authorizes the Exchange to designate Participants as Incentive Program Participants who may receive benefits in return for assuming certain obligations. The Program is being implemented to increase market depth, tighten quoted spreads, and improve liquidity on Polymarket US, consistent with Core Principle 2 (Compliance with Rules), Core Principle 3 (Contracts Not Readily Subject to Manipulation), Core Principle 4 (Prevention of Market Disruption), Core Principle 7 (Availability of General Information), Core Principle 9 (Execution of Transactions), and Core Principle 12 (Protection of Markets and Market Participants). The effective terms of the Program will be posted and publicly available on the Exchange's website.

The Exchange certifies that the Program complies with the CEA, CFTC regulations, and the Core Principles. The Program is designed to promote fair and orderly markets, is not designed to permit unfair discrimination among market participants, and does not impact order execution priority or otherwise give participants any execution preference or advantage. Participation in the Program is voluntary and subject to approval by the Exchange. In addition, the Exchange's Control Desk in conjunction with the National Futures Association ("NFA") as the Exchange's Regulatory Service Provider, actively monitors for trading abuses and will take appropriate action against any Program Participant engaging in market abuses. Trading activity that violates the Exchange Rulebook will be disqualified from awards under the Program.

The Exchange is not aware of any substantive opposing views to the Program. The Exchange certifies that, concurrent with this submission, a redacted version of the Program was posted on Polymarket US's website, and is accessible at: www.polymarketexchange.com. Please direct any questions regarding this submission to Megan McGrath, Chief Compliance Officer, QCX LLC (megan.mcgrath@qcex.com).

Sincerely,

/s/ Megan McGrath
Chief Compliance Officer
QCX LLC
Email: megan.mcgrath@qcex.com

Attachments:
- Appendix A: Amended Market Maker Program
- Appendix B: Amended Market Maker Program (Confidential)
- Appendix C: FOIA Confidential Treatment Request

Appendix A: Terms and Conditions
Amended Market Maker Program

1. Purpose

The purpose of the Amended Market Maker Program (the "Program") is to promote consistent liquidity on established QCX LLC d/b/a Polymarket US ("Polymarket US" or the "Exchange") markets by incentivizing approved participants to provide continuous, competitive two-sided quotations across a broad base of instruments. Increased market depth and tighter quoted spreads benefit Participants by enhancing price discovery and improving execution quality.

2. Eligibility

Participants who apply to the Program using the Application Form shall be deemed "Eligible Participants". Eligible Participants who subsequently receive approval by the Exchange to enter and participate in the Program shall be deemed "Program Participants". The Exchange, in its sole discretion, reserves the right to deny Program entry to new Eligible Participants based on factors such as, but not limited to, current market dynamics and total number of Program Participants, and may place new Eligible Participants on a waitlist indefinitely or until one or more current Program Participants cease to participate as a Program Participant, or in the event the Exchange deems it necessary to add additional Program Participants, in its sole discretion.

Quoting evaluation for new Program Participants will start on the first or fifteenth calendar day of the first calendar month ("Eligible Period") in which they joined the Program, whichever results in stronger performance. Polymarket US may revoke Program Participant status with at least seven (7) days' written notice, except in cases of material breach of the terms of the Program, the Exchange Rulebook or applicable law, or gaming, in which case revocation may be immediate.

Participation in the Program is subject to approval by Polymarket US in its sole discretion. Polymarket US may approve, deny, or suspend Program Participant status at any time. Only approved Program Participants are eligible to earn per-Contract rebates under the Program.

3. Effective Date

The term of the Program will begin on the effective date of this Notice, which is 10 business days following its certification to the Commodity Futures Trading Commission (the "CFTC"), and will continue through May 22, 2026 ~~February 28, 2028~~, ~~or the date on which Polymarket US determines to modify, extend, or terminate the program~~. The Program may apply to some or all Polymarket Contracts as designated by Polymarket US. Polymarket US may, at its discretion, announce separate effective dates for different Series or terminate the Program for individual Series.

4. Requirements

Program Participants opt-in to Quoting Requirements (i.e., quoting obligations referring to displayed size, quoted width, maintained uptime, and maintained coverage) for Assigned Contracts (i.e., Contracts to which the Quoting Requirements apply) on a per-Series and per-Product basis for each Eligible Period. A "Series" is defined as a thematically-bounded set of Assigned Contracts to which Quoting Requirements apply; for example, in the case of politics-related Contracts, "US Presidential," or, in the case of sports-related contracts, "MLS". A "Product" is defined as a kind of Contract, defined in product self-certifications to the Commodity Futures Trading Commission; for instance, an "Election Winner Contract," or an "Athletic Event Contract." Quoting Requirements might apply, for instance, to all "Election Winner Contract" Contracts, in the "US Presidential" series.

A Program Participant may elect to participate in one or more Series and is only subject to Quoting Requirements and eligible for per-Contract rebates in the Assigned Contracts they have opted into. Opt-in elections must be submitted before the start of each Eligible Period. Program Participant shall maintain quotes on markets designated by Polymarket US, organized by Category and Series. Polymarket US may add or remove Assigned Contracts or Series with seven (7) days' notice before the first day of the Eligible Period in which such changes take effect. Quoting Requirements, including minimum spread (the "Spread Requirement"), minimum displayed size (the "Size

Requirement", minimum uptime (the "Uptime Requirement"), and minimum market coverage (the "Coverage Requirement"), vary by the self-certified product in which the Assigned Contract participates (e.g., an "Athletic Event Contract"), and the state of the underlying event to which the Assigned Contract refers (e.g., during the underlying event, or before the beginning of the underlying event).

Program Participants that satisfy the applicable requirements for their Assigned Contracts on a given day are eligible to receive per-Contract rebates on qualifying maker volume for that Series and market state for that day. Per-Contract rebates are subject to a maximum aggregate payout per Program Participant per Eligible Period, as published communicated in writing to Program Participants. Polymarket US may adjust Quoting Requirements, rebate rates, or caps on a prospective basis with seven (7) days' notice. Such notice will be communicated in writing to all Program Participants.

5. Terms and Conditions

Polymarket US is the sole arbiter of the Program, and any dispute will be resolved by Polymarket US in its sole discretion. All modifications will be made prospectively and, where required, will be submitted to the CFTC pursuant to Part 40. Polymarket US may modify the Program, and/or amend these Terms and Conditions at any time. In the event the Program or these Terms and Conditions are amended, Polymarket US will communicate these changes in writing to all Program Participants. Polymarket US reserves the right to cancel or withdraw the Program if it suspects abuse or fraud, with all participants involved subject to review by the Polymarket US's compliance department. Should Eligible Participants fail to comply with any provision of the Polymarket US or Polymarket Clearing Rulebooks, they may, in the Exchange's sole discretion, be excluded from eligibility in the Program. Any exclusion from the Program will follow Polymarket US's disciplinary procedures set forth in its Rulebook and in compliance with CFTC Core Principle 12.